

Ganeshapal Giri v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 January 2023 · WRIT - C No. 39029 of 2022 · **Petition disposed of; relegated to section 127 appeal.**

HEADNOTE

The petitioner challenged a 19 September 2022 communication, held to be the electricity department's order on his clause 6.5 representation pursuant to an earlier High Court direction, not a mere notice. Department counsel produced a final assessment dated 9 December 2020 treating the 26 October 2020 provisional assessment as final for want of objection. The Division Bench declined to examine the assessment or the rejected letting-out plea in writ jurisdiction and disposed of the petition, leaving the petitioner to the statutory appeal under section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Ganeshapal Giri challenged a 19 September 2022 communication of the electricity department. It was the order on his clause 6.5 representation, filed under liberty granted in Writ-C No. 10151 of 2022. Counsel for the department produced a final assessment dated 9 December 2020 recording that no objection had been filed to the provisional assessment of 26 October 2020. The representation was rejected on a letting-out plea for want of a registered lease; counsel admitted only an unregistered photocopy of an agreement existed.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

statutory appeal against final assessment; writ declined

HOLDING

Where a final assessment order is on record (provisional assessment treated as final for want of objection) and the consumer's clause 6.5 representation has already been rejected, the High Court will not examine the assessment in writ jurisdiction and will leave the consumer to the statutory appeal under section 127 of the Electricity Act, 2003. ¶ 2

PRINCIPLE TAGS

alternative-remedy-s127-appeal-bars-writ-against-s126-assessment The 9 December 2020 final assessment (provisional of 26 October 2020 treated as final for want of objection) was left to section 127 appeal; the writ was not entertained on the merits. ¶ 2

alternative-remedy-section-127-appeal The Court declined writ examination and expressly left the petitioner to the statutory remedy of appeal under section 127. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE FINAL ASSESSMENT AND THE LETTING-OUT/LEASE PLEA

Writ examination declined; petitioner left to section 127 appeal. ¶ 2